

As to the sixth cause of action for violation of Civil Code section 1102 et seq., the motion is denied. The court finds the FAC alleges sufficient facts to support this claim. Civil Code section 1102 et seq. provides that sellers must disclose known material facts affecting value or desirability, including neighborhood nuisances. Whether defendants' disclosures satisfied this duty, or materially understated the severity of the condition, presents a factual dispute.

As to the ninth cause of action for rescission, the motion is granted. The FAC fails to allege facts demonstrating compliance with Civil Code section 1691(a), including prompt notice of rescission and restoration or offer to restore the benefits received under the contract. While the question of promptness is generally factual, the absence of any allegations addressing notice or tender renders the claim insufficiently pleaded. These defects, however, may be curable and leave to amend is appropriate. Therefore, the court grants the motion with leave to amend as to the ninth cause of action.

Plaintiff shall file and serve any amended complaint no later than June 26, 2026.

5. S-CV-0053338 Demas, John v. Saetes, Peter

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**. Department 42 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion for Attorneys' Fees

Plaintiffs move for an award of attorneys' fees in the amount of \$102,492 and costs of \$8,706.42 for a total of \$111,198.42 against defendant Peter Saetes. Plaintiffs also move for post-judgment interest from November 7, 2025 pursuant to Code of Civil Procedure section 685.010.

According to the proof of service filed on November 24, 2025, plaintiffs' moving papers were served on defendant by email only. It appears plaintiffs' reply filed March 12, 2026 was likewise served on defendant by email only. Defendant Saetes is self-represented in this action and there is no indication from the court's file that he has consented to electronic service. (Code Civ. Proc., § 1010.6(c).) Accordingly, there is insufficient evidence of effective service of the motion or the reply on defendant Saetes.

The court on its own motion continues the motion for attorneys' fees to be heard on **July 14, 2026 at 8:30 a.m. in Department 32** before the **Honorable Trisha J. Hirashima**. By June 23, 2026, plaintiffs are directed to file and serve by mail a notice of continued hearing, serve defendant by mail the moving papers and reply, and file all appropriate proofs of service.

Motion for Charging Order

Plaintiffs and judgment creditors move for a charging order against the transferable interest of defendant and judgment debtor Peter Saetes pursuant to Corporations Code section 17705.03 and Code of Civil Procedure section 708.310. John Manikas, who is no longer a party to this action having been dismissed on June 17, 2025, filed an opposition.

Service is deficient as to judgment debtor Peter Saetes. According to the respective proofs of service, plaintiffs' moving papers and reply and Mr. Manikas' opposition were served on Mr. Saetes by email only. Mr. Saetes is self-represented in this action and there is no indication from the court's file that he has consented to electronic service. (Code Civ. Proc., § 1010.6, subd. (c).) Accordingly, there is insufficient evidence of effective service on judgment debtor Saetes of any of the briefing submitted for this motion for charging order.

Plaintiffs seek a charging order against Mr. Saetes' interests in two limited liability corporations: Sierra College Brace 18, LLC and Darkhorse Estates, LLC. Service of this motion appears deficient as to these entities as well, as the motion was mailed directly to the entities without any reference to any agent for service of process. No evidence is presented that either limited liability company was served by delivery to the person to whom service is authorized. Neither of these limited liability companies are or have been parties to this action nor have they otherwise appeared in this action. Service on an attorney who may represent an entity or an individual in another action would not be effective service in this action where the entities had not otherwise appeared. Plaintiffs provide no authority to support the conclusion that mailed service of this motion directly to the limited liability companies is sufficient or that anything less than personal service would be required in such a situation.

Based on the foregoing, the motion for charging order is denied without prejudice.

6. S-CV-0053679 Wilbur-Ellis Co. v. Blackbuck Orchards

Motion for Attorneys' Fees

Plaintiff moves for an award of attorneys' fees and costs incurred to enforce and collect on defendants' breach of a \$250,000 application / master note / security agreement (note) and their failure to pay an ongoing credit account issued under the account application (agreement).

By prior order, on October 21, 2025, the court entered a judgment against defendants, in the amount of \$229,805.98, for the first cause of action for breach of note, and \$10,378.49, for the second cause of action for breach of agreement. Plaintiff moves the court to grant plaintiff's motion for attorneys' fees and costs for bringing this action.

On or about April 15, 2022, defendants executed and delivered the note. Section nine of the note obligates the defendants, to pay "all expenses reasonably incurred by lender or